

PUBLIC SUBMISSION

As of: March 21, 2025
Received: March 15, 2025
Status: [REDACTED]
Tracking No. m8b-2pwc-ni3w
Comments Due: March 15, 2025
Submission Type: Web

Docket: NSF_FRDOC_0001

Recently Posted NSF Rules and Notices.

Comment On: NSF_FRDOC_0001-3479

Request for Information: Development of an Artificial Intelligence Action Plan

Document: NSF_FRDOC_0001-DRAFT-8516

Comment on FR Doc # 2025-02305

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General Comment

I'm a fashion photographer whose work has appeared in Vogue, Elle, Harper's Bazaar, and Time's 100 Most Influential People list, and I was able to choose this career path because I knew that copyright protection existed, and that it would allow me to build a sustainable living through the ability to license my work.

With photography, I often created projects for fine art explorations without pay, other times, I accepted the low fees for magazines and editorial work, because I know that I can still license the work again later. Copyright is the crucial factor that made pursuing art professionally viable for me as a career.

But for over two years now, generative AI companies have used copyrighted works without permission or compensation to creatives. While the EU, China, and South Korea have taken steps to address this issue, the United States—home to the world's largest media and entertainment industry—has provided little clarity on this unauthorized usage.

Today, we're seeing AI companies lobby for fair use exceptions for AI training. It feels like I'm watching the dismantling of the very foundations that have enabled creative professions to exist in America. This shortsightedness threatens not just individual artists, but America's dominance in creative industries itself.

The U.S. creative industry contributes \$1.1 trillion to the US economy—4.3% of GDP. The media and entertainment sector, at \$649 billion, is 23% of the entire world's M&E industry. It was the result of long-standing copyright protections that allowed creators to build sustainable careers, and let companies develop valuable intellectual property knowing that their work is safe from unauthorized use.

If we look back only a couple decades, China struggled with a reputation for its lack of sufficient copyright protection, which caused many companies to avoid doing business in China. It's only after the copyright reform that global luxury brands started entering the market en masse.

The US now risks facing a similar reputation shift, but in reverse. If creator's rights are eroded, I can only foresee that top talents will gravitate towards moving to countries with stronger copyright and protection for their work. And ironically, since AI companies view creative works as "training data," this migration could actually result in higher-quality 'data' flowing to other regions, ones that better protect creators' rights.

To be clear, this isn't about preventing AI development or progress—it's about ensuring creators have the fundamental right to choose how their work is used—the same choice that has been at the core of copyright protection and enabled creative professions and the US' arts industry to dominate the world and flourish.

The common argument that respecting copyright in AI development is "technically infeasible" doesn't really hold up to scrutiny. We already have systems managing vast amounts of content and rights:

- YouTube's Content ID processes billions of videos and identifies copyrighted material
- DMCA systems can track unauthorized usage across billions of web pages
- * Apps like Shazam can identify songs from mere seconds of an audio

- * Image recognition systems like Google Lens can identify copies of an artwork across the web with high accuracy
- * Getty Images manages licensing for over 440 million digital assets
- * Financial systems process billions of transactions per month, and services for taxes, banking, and insurance deal with hundreds of millions of users

These technologies prove that attribution, licensing, and payment systems are in fact, feasible. The specific tools for AI content permissions and licensing may not yet exist, but claiming it's impossible for trillion-dollar companies really strains credibility.

From a non-art, purely tech and business point of view from my time working in technology and platforms used by millions of users—a copyright-friendly environment won't be what hinders AI development—it rather has the potential to strengthen it by providing legally licensed, high-quality media. This approach would reduce friction, prevent creative industry erosion, and maintain the entertainment and arts sectors that drive American cultural influence globally through Hollywood, music, and gaming.